

25STCV12409 25STCV12409

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-08-26

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Case Number: 25STCV12409 Hearing Date: August 26, 2026 Dept: 529

ALVARO

AGUILERA VAZQUEZ VS GENERAL MOTORS, LLC

PLAINTIFF'S

MOTION TO STAY PROCEEDINGS

Date

of Hearing: August 26, 2026 Trial Date: May

11, 2027

Department:

529 Case

No.: 25STCV12409

Moving

Party: Plaintiff Alvaro

Aguilera Vazquez

Responding

Party: Defendant General Motors LLC

BACKGROUND

This is a lemon law action. On April 29, 2025,

Plaintiff Alvaro Aguilera Vazquez filed a complaint against Defendant General

Motors, LLC for various violations of the Song-Beverly Consumer Warranty Act as

well as Fraudulent Inducement – Concealment. On October 10, 2025, Plaintiff

filed a First Amended Complaint. Plaintiff filed a Second Amended Complaint on

March 23, 2026.

[TENTATIVE]

RULING:

Plaintiff's Motion to Stay Proceedings is DENIED.

DISCUSSION

Plaintiff Alvaro Aguilera Vazquez moves to stay all

proceedings in the matter, pending the Court of Appeal's decision in Price v.

General Motors (B353231, app. Pending). Plaintiff makes the motion on the

grounds that doing so would promote judicial economy and promote the interest

of justice by preventing inconsistent verdicts on the same issue of law in

superior courts statewide.

A "court ordinarily has inherent power, in its

discretion, to stay proceedings when such a stay will accommodate the ends of

justice.’ (People v. Bell (1984) 159 Cal.App.3d 323, 329.) As the Court in Landis v. North American Co. (1936) 299 U.S. 248, 254, explained, ‘the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’ (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141; see also Frieberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1481, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.”].)

Plaintiff argues Price will decide a novel legal issue that is implicated in this case: whether a manufacturer’s post-filing election into the Song-Beverly Act’s new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect. Accordingly, such a determination would affect the action at hand where Plaintiff purchased the subject vehicle in subject vehicle in 2017 and filed the complaint around 2025.

In opposition, Defendant argues Plaintiff’s Motion fails to comply with California Rule of Court 3.1306 as Plaintiff fails to properly request judicial notice of the records; Plaintiff has failed to meet the burden of establishing the balance of equities; and the motion is simply a

delay tactic designed to manage its own overwhelming litigation caseload as a matter of last resort.

The court denies the motion to stay proceedings.

First, regardless of taking judicial notice of Exhibits A through C, Plaintiff has not demonstrated that a stay would be in the interest of justice or promote judicial efficiency. Plaintiff is seeking a stay for an unknown period of time.

This would be highly prejudicial to GM. If needed, Plaintiff could file a motion for reconsideration after the Court of Appeal makes its ruling.

Based on the foregoing, the motion to stay proceedings is DENIED.